

COMMITTEE ON COMMERCE
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2996
(Reference to printed bill)

Amendment instruction key:
[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 20, chapter 2, article 6, Arizona Revised
3 Statutes, is amended by adding section 20-443.03, to read:

4 20-443.03. Certificates of insurance; notice; civil
5 penalty; rules; applicability; definition

6 A. A CERTIFICATE OF INSURANCE THAT IS PREPARED OR ISSUED BY
7 AN INSURER, AN INSURANCE PRODUCER OR A REPRESENTATIVE OF AN INSURER
8 OR AN INSURANCE PRODUCER IS NOT AN INSURANCE POLICY, DOES NOT AMEND,
9 EXTEND OR ALTER THE COVERAGE THAT IS PROVIDED ~~[IN]~~ [BY] AN INSURANCE
10 POLICY AND DOES NOT CONFER ANY NEW OR ADDITIONAL ~~[RIGHT]~~ [RIGHTS]
11 BEYOND ~~[WHAT IS]~~ [THOSE] EXPRESSLY STATED IN THE INSURANCE POLICY.

12 ~~[B. THE DIRECTOR SHALL PROHIBIT THE USE OF A CERTIFICATE OF~~
13 ~~INSURANCE IF THE CERTIFICATE OF INSURANCE:~~

14 ~~1. IS UNFAIR, MISLEADING OR DECEPTIVE.~~

15 ~~2. VIOLATES PUBLIC POLICY.~~

16 ~~3. VIOLATES ANY LAW, INCLUDING ANY RULE ADOPTED BY THE~~
17 ~~DIRECTOR.]~~

18 ~~[C.]~~ [B.] A PERSON MAY NOT PREPARE, ISSUE, REQUEST OR REQUIRE
19 A CERTIFICATE OF INSURANCE THAT:

20 1. CONTAINS FALSE OR MISLEADING INFORMATION ABOUT THE
21 INSURANCE POLICY.

22 2. ~~[PURPORTS TO ALTER, AMEND OR EXTEND]~~ [ALTERS, AMENDS OR
23 EXTENDS] COVERAGE THAT IS PROVIDED FOR IN THE INSURANCE POLICY.

24 3. CLAIMS THAT THE INSURANCE POLICY COMPLIES WITH THE
25 INSURANCE OR INDEMNIFICATION REQUIREMENTS OF A CONTRACT.

26 ~~[D.]~~ [C.] A PERSON [, OTHER THAN THE POLICYHOLDER] IS
27 ENTITLED TO NOTICE OF CANCELLATION, NONRENEWAL OR A MATERIAL CHANGE
28 IN THE ~~[POLICY]~~ TERMS [OF AN INSURANCE POLICY] ~~[OR TO A SIMILAR~~
29 ~~NOTICE THAT CONCERNS THE INSURANCE POLICY]~~ ONLY IF [NOTICE
30 REQUIREMENTS ARE INCLUDED UNDER THE TERMS OF THE INSURANCE POLICY OR
31 ANY ENDORSEMENT TO THE INSURANCE POLICY] [THE POLICY OR AN
32 ENDORSEMENT TO THE POLICY AFFORDS SUCH NOTICE RIGHTS TO THE PERSON].

33 ~~[E.]~~ [D.] THE DIRECTOR ~~[SHALL]~~ [MAY] INVESTIGATE ANY
34 VIOLATION OF THIS SECTION, AND THE DIRECTOR MAY TAKE ONE OR BOTH OF
35 THE FOLLOWING ACTIONS:

1 1. ISSUE AN ORDER THAT REQUIRES THE PERSON TO CEASE AND
2 DESIST FROM THE ACTIONS THAT CONSTITUTE THE VIOLATION.

3 2. ASSESS A CIVIL PENALTY OF NOT MORE THAN \$1,000 PER
4 VIOLATION.

5 ~~[F.]~~ ~~[E.]~~ SUBSECTION ~~[F]~~ ~~[D]~~ OF THIS SECTION DOES NOT LIMIT
6 THE AUTHORITY OF THE DIRECTOR TO INVESTIGATE, ENFORCE OR ISSUE CIVIL
7 PENALTIES PURSUANT TO ANY OTHER APPLICABLE LAW.

8 ~~[G.]~~ ~~[F.]~~ THE DIRECTOR MAY ADOPT RULES TO IMPLEMENT THIS
9 SECTION.

10 ~~[H.]~~ ~~[G.]~~ THIS SECTION APPLIES TO ANY CERTIFICATE OF
11 INSURANCE THAT IS ISSUED IN CONNECTION WITH PROPERTY AND CASUALTY
12 RISKS LOCATED IN THIS STATE WITHOUT REGARD TO THE LOCATION OF THE
13 POLICYHOLDER, INSURER OR INSURANCE PRODUCER OR ANY PERSON WHO
14 REQUESTS OR REQUIRES A CERTIFICATE OF INSURANCE TO BE ISSUED.

15 ~~[I.]~~ ~~[H.]~~ A CERTIFICATE OF INSURANCE OR ANY OTHER DOCUMENT OR
16 CORRESPONDENCE THAT IS PREPARED, ISSUED, REQUESTED OR REQUIRED IN
17 VIOLATION OF THIS SECTION IS VOID.

18 ~~[J.]~~ ~~[I.]~~ FOR THE PURPOSES OF THIS SECTION~~[J.]~~~~[I.]~~

19 ~~[K.]~~ "CERTIFICATE OF INSURANCE":

20 ~~(a)~~ ~~[L.]~~ MEANS A DOCUMENT, FORM, TEMPLATE, SUBMISSION,
21 QUESTIONNAIRE OR OTHER INSTRUMENT REGARDLESS OF TITLE THAT INCLUDES
22 A DESCRIPTION, SUMMARY, INTERPRETATION OR EVIDENCE OF PROPERTY OR
23 CASUALTY INSURANCE COVERAGE AND THAT IS PREPARED OR ISSUED BY AN
24 INSURER, AN INSURANCE PRODUCER OR A REPRESENTATIVE OF AN INSURER OR
25 PRODUCER.

26 ~~(b)~~ ~~[M.]~~ DOES NOT INCLUDE ANY OF THE FOLLOWING:

27 ~~(i)~~ ~~[N.]~~ AN INSURANCE POLICY.

28 ~~(ii)~~ ~~[O.]~~ AN INSURANCE BINDER.

29 ~~(iii)~~ ~~[P.]~~ A POLICY ENDORSEMENT.

30 ~~(iv)~~ ~~[Q.]~~ AN AUTOMOBILE INSURANCE IDENTIFICATION OR
31 INFORMATION CARD.

32 ~~[R.]~~ "PERSON":

33 ~~(a)~~ MEANS ANY INDIVIDUAL, PARTNERSHIP, CORPORATION,
34 ASSOCIATION OR OTHER LEGAL ENTITY.

35 ~~(b)~~ INCLUDES THIS STATE, ANY POLITICAL SUBDIVISION OF THIS
36 STATE OR ANY GOVERNMENTAL SUBDIVISION OR AGENCY.]

37 Sec. 2. Applicability

38 This act applies to any contract or addendum that is entered
39 into from and after the effective date of this act.

40 Enroll and engross to conform

41 Amend title to conform

JEFF WENINGER
CHAIRMAN

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